

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.: 22491/17

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JUDON MCBRIDE,

**AMENDED VERIFIED
COMPLAINT**

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER DEREK HERNANDEZ,
TAX REGISTRY #954932 OF THE 40TH PRECINCT,
POLICE OFFICER SONNY RAMCHARRAN, TAX REGISTRY
#954259 OF THE 40TH PRECINCT, DETECTIVE JAVIER
CORDERO, TAX REGISTRY #925117 OF THE 40TH PRECINCT,
POLICE OFFICER OMAR HABIB, TAX REGISTRY #925117
OF THE 47TH PRECINCT AND LIEUTENANT KEVON SAMPLE,
TAX REGISTRY #935679 OF THE 19TH PRECINCT,

Defendants,

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Plaintiff, by and through his attorney, Law Office of Andrew C. Laufer, PLLC complaining
of the Defendants herein, upon information and belief, respectfully show to this Court, and allege
as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiff was a resident of the County of Bronx, City and State of New York.
2. That at all times hereinafter mentioned Defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.

4. That at all times hereinafter mentioned Defendants, POLICE OFFICER DEREK HERNANDEZ, TAX REGISTRY #954932 OF THE 40TH PRECINCT, POLICE OFFICER SONNY RAMCHARRAN, TAX REGISTRY #954259 OF THE 40TH PRECINCT, DETECTIVE JAVIER CORDERO, TAX REGISTRY #925117 OF THE 40TH PRECINCT, POLICE OFFICER OMAR HABIB, TAX REGISTRY #942899 OF THE 47TH PRECINCT AND LIEUTENANT KEVON SAMPLE, TAX REGISTRY #935679 OF THE 19TH PRECINCT, were and still are employed with the NEW YORK CITY POLICE DEPARTMENT.

5. That prior to the institution of this action, a Notice of Claim was duly served upon and filed with the CITY OF NEW YORK on behalf of Plaintiff.

6. That a hearing was held on January 17, 2017 by the CITY OF NEW YORK pursuant to Municipal Law 50-h.

7. That at all time herein mentioned, POLICE OFFICER DEREK HERNANDEZ, TAX REGISTRY #954932 OF THE 40TH PRECINCT, POLICE OFFICER SONNY RAMCHARRAN, TAX REGISTRY #954259 OF THE 40TH PRECINCT, DETECTIVE JAVIER CORDERO, TAX REGISTRY #925117 OF THE 40TH PRECINCT, POLICE OFFICER OMAR HABIB, TAX REGISTRY #942899 OF THE 47TH PRECINCT AND LIEUTENANT KEVON SAMPLE, TAX REGISTRY #935679 OF THE 19TH PRECINCT, were acting within the scope and course of their employment with the New York Police Department, and under color of State Law.

That at all times herein mentioned, POLICE OFFICER DEREK HERNANDEZ, TAX REGISTRY #954932 OF THE 40TH PRECINCT, POLICE OFFICER SONNY RAMCHARRAN, TAX REGISTRY #954259 OF THE 40TH PRECINCT, DETECTIVE

JAVIER CORDERO, TAX REGISTRY #925117 OF THE 40TH PRECINCT, POLICE OFFICER OMAR HABIB, TAX REGISTRY #942899 OF THE 47TH PRECINCT AND LIEUTENANT KEVON SAMPLE, TAX REGISTRY #935679 OF THE 19TH PRECINCT were acting in their individual and official capacity as employees of Defendants THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYPD).

8. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS AS TO ALL CAUSES OF ACTION

9. On or about October 20, 2016, at approximately 6:30 pm, Plaintiff JUDON MCBRIDE was lawfully at 140th Street and Saint Anns Avenue, in the County of Bronx, State of New York.

10. At said time and place, defendants did approach the plaintiff and asked for identification.

11. Plaintiff was then arrested and taken to the 40th precinct. Plaintiff was not told what he was being charged with.

12. Plaintiff was then taken to central booking at 9:00 am on October 21, 2016.

13. Plaintiff was not presented before judge. He was then released from Central Booking at 3:45 pm on October 21, 2016.

The individual Defendants, POLICE OFFICER DEREK HERNANDEZ, TAX REGISTRY #954932 OF THE 40TH PRECINCT, POLICE OFFICER SONNY RAMCHARRAN, TAX REGISTRY #954259 OF THE 40TH PRECINCT, DETECTIVE JAVIER CORDERO, TAX REGISTRY #925117 OF THE 40TH PRECINCT, POLICE OFFICER OMAR HABIB, TAX REGISTRY #942899 OF THE 47TH PRECINCT AND LIEUTENANT KEVON SAMPLE, TAX REGISTRY #935679 OF THE 19TH PRECINCT, under color of state law, subjected Plaintiff to the foregoing acts and omissions without due process of the law, thereby depriving

Plaintiff of his rights, privileges and immunities secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification of which Plaintiff was aware and did not consent; (b) freedom from the lodging of false charges against him by police; (c) freedom from abuse of process; and (d) the enjoyment of equal protection, privileges and immunities under the laws.

FIRST CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHT UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON FALSE ARREST
AND IMPRISONMENT

14. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

15. That on or about October 20, 2016, at approximately 6:30 pm, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants and employees, including but not limited to October 20, 2016, at approximately 6:30 pm, wrongfully and falsely arrested, imprisoned and detained Plaintiff without any right or justifiable grounds therefore.

That on or about October 20, 2016, at approximately 6:30 pm, Defendants PPOLICE OFFICER DEREK HERNANDEZ, TAX REGISTRY #954932 OF THE 40TH PRECINCT, POLICE OFFICER SONNY RAMCHARRAN, TAX REGISTRY #954259 OF THE 40TH PRECINCT, DETECTIVE JAVIER CORDERO, TAX REGISTRY #925117 OF THE 40TH PRECINCT, POLICE OFFICER OMAR HABIB, TAX REGISTRY #942899 OF THE 47TH PRECINCT AND LIEUTENANT KEVON SAMPLE, TAX REGISTRY #935679 OF THE 19TH PRECINCT, jointly and severally their capacity as a police officers, wrongfully stopped, handcuffed, and seized the Plaintiff about his person, causing him physical pain and mental

suffering. At no time did Defendants have legal cause to stop, handcuff, seize or touch Plaintiff, nor did Plaintiff consent to this illegal touching nor was or privileged by law.

That on or about October 20, 2016, Defendants POLICE OFFICER DEREK HERNANDEZ, TAX REGISTRY #954932 OF THE 40TH PRECINCT, POLICE OFFICER SONNY RAMCHARRAN, TAX REGISTRY #954259 OF THE 40TH PRECINCT, DETECTIVE JAVIER CORDERO, TAX REGISTRY #925117 OF THE 40TH PRECINCT, POLICE OFFICER OMAR HABIB, TAX REGISTRY #942899 OF THE 47TH PRECINCT AND LIEUTENANT KEVON SAMPLE, TAX REGISTRY #935679 OF THE 19TH PRECINCT, jointly and severally without any warrant, order or other legal process and without legal right, wrongfully and unlawfully arrested Plaintiff, restrained him and his liberty and then took him into custody to the 40th Precinct.

16. Plaintiff was thereafter held at the 40th Precinct, for several hours until he was taken to central booking.

17. That the aforesaid arrest, detention and imprisonment continued at the 40th Precinct in Bronx, New York and elsewhere.

18. That the said arrest, detention and imprisonment was caused by the CITY, its agents, servants and employees, including but not limited to the Defendant police officer, without a warrant and without any reasonable cause or belief that Plaintiff was in fact guilty of any crime.

19. That the CITY, its agents, servants and employees, as set forth above, intended to confine Plaintiff; that Plaintiff was conscious of the confinement; that Plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

20. As a result of the aforesaid actions, including the arrest and imprisonment of Plaintiff without probable cause, Defendants POLICE OFFICER DEREK HERNANDEZ, TAX

REGISTRY #954932 OF THE 40TH PRECINCT, POLICE OFFICER SONNY RAMCHARRAN, TAX REGISTRY #954259 OF THE 40TH PRECINCT, DETECTIVE JAVIER CORDERO, TAX REGISTRY #925117 OF THE 40TH PRECINCT, POLICE OFFICER OMAR HABIB, TAX REGISTRY #942899 OF THE 47TH PRECINCT AND LIEUTENANT KEVON SAMPLE, TAX REGISTRY #935679 OF THE 19TH PRECINCT deprived Plaintiff of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.

21. As a result of the aforementioned actions, Defendants POLICE OFFICER DEREK HERNANDEZ, TAX REGISTRY #954932 OF THE 40TH PRECINCT, POLICE OFFICER SONNY RAMCHARRAN, TAX REGISTRY #954259 OF THE 40TH PRECINCT, DETECTIVE JAVIER CORDERO, TAX REGISTRY #925117 OF THE 40TH PRECINCT, POLICE OFFICER OMAR HABIB, TAX REGISTRY #942899 OF THE 47TH PRECINCT AND LIEUTENANT KEVON SAMPLE, TAX REGISTRY #935679 OF THE 19TH PRECINCT deprived Plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and Laws of the United States of America and the Fourth, Fifth, and Fourteenth Amendments and under New York State law.

22. As a result of the aforementioned actions, Defendants deprived Plaintiff of his right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fourth, Fifth, and Fourteenth Amendments and New York State law.

23. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

24. That by reason of the false arrest, imprisonment and detention of Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly

injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

25. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and New York State law.

SECOND CAUSE OF ACTION AGAINST DEFENDANT CITY
MONELL CLAIM PURSUANT TO 42 U.S.C § 1983 AND RESPONDEAT SUPERIOR

26. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

27. All of the acts and omissions by the individual Defendants, described above were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendants CITY and the NEW YORK CITY POLICE DEPARTMENT (NYPD).

28. Defendants CITY and NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

29. Defendants incarcerated and prosecuted Plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said prosecution and incarceration would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

30. At all times mentioned herein, said police officer was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York specifically the policy of 'Stop and Frisk' which has been deemed unlawful See *Floyd, et al v City 08 civ 1034 (SAS) (2013)*.

31. On or about October 20, 2016, Defendants did stop, seize, search, imprison, and prosecute the person of the Plaintiff without a court authorized arrest warrant.

32. The Plaintiff was unlawfully arrested and imprisoned without the Defendants' possessing probable cause to do so.

33. The above actions of Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution.

- a. Freedom from false arrest.
- b. Freedom from unlawful or false imprisonment.

34. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights.

35. Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of prosecution especially when it's police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and the arrest should be based upon probable cause.

36. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering to his detriment.

THIRD CAUSE OF ACTION UNDER NEW YORK STATE LAW

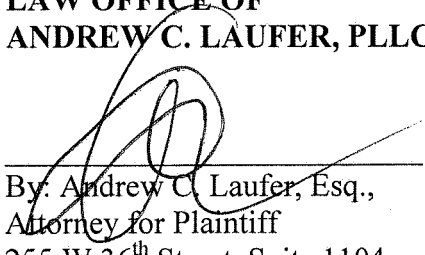
36. Plaintiff repeats and realleges each and every allegation contained in the First and Second Causes of Action as if fully set forth at length herein.

37. That the aforesaid actions, and resulting injuries to plaintiff, were due to the negligence of the City in the hiring, retention, and training of its employees, including the police officers involved in the unlawful imprisonment and malicious prosecution of the plaintiff.

WHEREFORE, Plaintiff demands judgment against Defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for their pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
February 4, 2019

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.: 22491/17

-----X
JUDON MCBRIDE,

**SUPPLEMENTAL
VERIFICATION**

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER DEREK HERNANDEZ,
TAX REGISTRY #954932 OF THE 40TH PRECINCT,
POLICE OFFICER SONNY RAMCHARRAN, TAX REGISTRY
#954259 OF THE 40TH PRECINCT, DETECTIVE JAVIER
CORDERO, TAX REGISTRY #925117 OF THE 40TH PRECINCT,
POLICE OFFICER OMAR HABIB, TAX REGISTRY #925117
OF THE 47TH PRECINCT AND LIEUTENANT KEVON SAMPLE,
TAX REGISTRY #935679 OF THE 19TH PRECINCT,

Defendants,

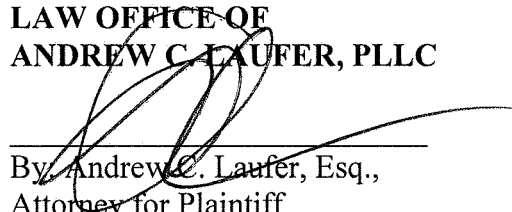
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ANDREW C. LAUFER, an attorney duly admitted to practice law in the Courts of New
York, affirms the following to be true:

1. That I am a principal of the Law Office of Andrew C. Laufer, PLLC, attorney for the plaintiff in the within action. That I have read the foregoing complaint and know the contents thereof, and that the same are true to my knowledge, except as to the matters herein stated to be alleged upon information and belief, and that as to these matters I believe them to be true.
2. That the sources of my information and knowledge are records and investigation reports maintained within the file.
3. That the reason this verification is made by the affirmant and not by the plaintiff is that the plaintiff does not reside in the County of New York, which is the county wherein this firm maintains its office.

Dated: New York, New York
February 4, 2019

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

INDIVIDUAL ASSIGNMENT PART 33

STIPULATION

Index No.

22491/2017E

Mot. Cal.No.

Date

1/31/19

Judson McBride X
City of New York, et al. X

IT IS HEREBY STIPULATED AND AGREED by and between the below-named attorney(s) as follows:

The plaintiff shall amend the complaint and serve new parties at their business address, as provided by the City, within 45 days.

The amended complaint shall allege only federal claims against the new parties in their individual capacity

Date:

1/31/19

So Ordered.

ENTER:

J.S.C.

Attorney for Plaintiff

Attorney for Defendant

Attorney for Defendant

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index: 22491 Year: 2017E

JUDON MCBRIDE,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER DEREK HERNANDEZ,
TAX REGISTRY #954932 OF THE 40th PRECINCT, POLICE
OFFICER SONNY RAMCHARRAN, TAX REGISTRY
#954259 OF THE 40th PRECINCT, DETECTIVE JAVIER
CORDERO, TAX REGISTRY #925117 OF THE 40th PRECINCT
POLICE OFFICER OMAR HABIB, TAX REGISTRY #925117
OF THE 47th PRECINCT AND LIEUTENANT KEVON SAMPLE,
TAX REGISTRY #935679 OF THE 19th PRECINCT

Defendants,

SUPPLEMENTAL SUMMONS AND AMENDED VERIFIED COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for Plaintiff

Office and Post Office Address
255 W. 36th Street, Suite 1104
New York, NY 10018

Tel: (212) 422 1020
Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for:

PLEASE TAKE NOTICE:

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ NOTICE OF SETTLEMENT

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court at

on at M.
Dated,

Yours, etc.

Law Office of Andrew C. Laufer